NO ROOM FOR JUSTICE

Infrastructure in India's court rooms remains in abysmal state

Total court halls available in states and UTs	21,364
Total pending cases	47,303,131
Average no. of pending cases in every court hall	2,214

Source: Lok Sabha, as on Dec. 31, 2021

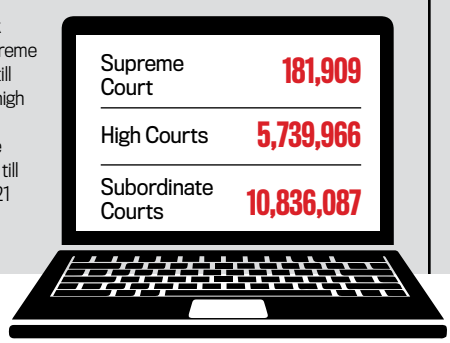
AN AVERAGE OF **2,356 CASES** ARE PENDING WITH EVERY JUDGE IN INDIA

ANOTHER **2,830 COURT HALLS** ARE UNDER CONSTRUCTION

THE VIRTUAL COURT ROOMS

Since Covid lockdown, courts have heard a large number of cases through the digital mode

Source: Lok Sabha, Supreme Court data till January 8; high courts and subordinate courts data till Dec. 31, 2021



27%
court rooms have computers placed on the judge's dais for video conferencing

26%
of court complexes do not have separate toilet for ladies

16%
do not have toilets for gents

32%
court rooms have separate record rooms

49%
do not have a library

5%
court complexes have medical facilities

Source: Supreme Court

UNDER RAMANA'S TENURE SINCE APRIL 2021, THE SC COLLEGIUM SENT 180 NAMES FOR APPOINTMENTS IN HIGH COURTS. THE CENTRE HASN'T CLEARED 45 NAMES

ency about names under consideration may make the process longer, as every decision will be questioned. "Transparency can be brought in after the appointment process is complete. After a cooling-off period, details of proceedings may be disclosed appropriately, without putting question marks on anyone's integrity," says lawyer Singh.

There was even an attempt to disband the collegium system. To streamline judicial appointments, the National Judicial Appointments Commission (NJAC) was created through a constitutional amendment; the NJAC Act was passed in April 2015. The NJAC was supposed to be a body comprising three senior-most judges of the Supreme Court, the Union law minister and two eminent persons appointed by the CJI, prime minister and leader of the Opposition in the Lok Sabha. However, within months of the NJAC coming into force, it was struck down as unconstitutional by the apex court. "One of the members of that Supreme Court bench later regretted striking it down, saying it was wrong. But what's the point now? Had the NJAC been in place, things would have been different and more transparent," Union law minister Kiren Rijiju said.

EXECUTIVE DELAY

The third cog in this process is the central government, whom the apex court has continuously criticised over the vacancies. Under Ramana's tenure, the Supreme Court Collegium made 180 recommendations for appointments in various high courts, but the government is yet to clear 45 names. A total of 159 recommendations from the past are still pending with the Centre. By the government's own admission, after receiving IB inputs on names recommended by the High Court collegium, it takes 127 days or 18 weeks to send the same to the Supreme Court collegium. On being questioned by the apex court about this long period, Venugopal